

Court No. - 39

Case :- WRIT - C No. - 23935 of 2022

Petitioner :- Manoj Kumar Dubey

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Kamlesh Kumar Yadav

Counsel for Respondent :- CSC, Udit Chandra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Mrs. Jyotsna Sharma, J.

Heard learned counsel for the petitioner and Sri Nitesh Patel, learned Advocate holding brief of Sri Udit Chandra, learned counsel for the respondent nos. 2 to 5.

The petitioner herein seeks to submit that the recovery citation has been issued to him without providing the provisional and final assessment order and giving time to raise objections to the provisional assessment made by the Department.

This is a matter of theft of electricity.

The contention is that the checking report has not been provided to the petitioner. It is contended by the learned counsel for the petitioner that as he is not provided the copy thereof, he could not file the appeal.

None of the counsels of the parties are aware of the date of the final assessment order.

Noticing the above, we provide that the petitioner herein shall appear in the Office of the Executive Engineer namely, respondent no. 2 on 15.09.2022. The provisional as well as the final assessment order shall be provided to the petitioner by the concerned Officer. After receipt of the same, the petitioner shall file an appeal under Section 127 of the Electricity Act, 2003 read with Clause 6.8 of the Electricity Supply Code, 2005 within a period of two weeks from the date of receipt of the assessment order. On such appeal being filed, the appellate authority shall decide the same on merits without raising any objection as to the limitation in filing thereof dealing with all points of objection raised by the petitioner, preferably, within a period of six weeks from filing of the same.

For a period of two months from today or till the final decision is taken by the appellate authority, whichever is earlier, the recovery citation dated 10.08.2021, shall not be pressed into service. However, in case of default on the part of the petitioner

to file the appeal within the time given above or to appear before the Executive Engineer on 15.09.2022, under the directions given by us, it will be open for the respondents to proceed in accordance with law.

The present petition is, accordingly, **disposed of**.

Order Date :- 8.9.2022

Vik/-